

25STCV19323 25STCV19323

County: los-angeles

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Case Number: 25STCV19323 Hearing Date: August 17, 2026 Dept: 732

Diana Dix. v. Bambee Inc., et al.

Monday, August 17, 2026

CASE NUMBER: 25STCV19323

UNOPPOSED

Bambee,
Inc.'s Motion to Compel Arbitration

Facts:

Plaintiff Diana Dix was employed with Defendant Bambee, Inc. from December 6, 2021, until being "constructively terminated" on July 15, 2024. Plaintiff alleges both discriminatory conduct and wage and hour claims.

Procedural

History: On July 2, 2025 and October 31, 2025, Plaintiff filed a 19 cause of action complaint and 20 cause of action first amended complaint:

1. Sex

Discrimination on the Basis Of Pregnancy (Govt. Code §12940(A))

2.

Discrimination Based Upon Physical Disability (Govt. Code §12940)

3.

Failure To Prevent Discrimination (Govt. Code §12940(K))

4.

Retaliation In Violation Of Public Policy (Govt. Code §12940 Et Seq.)

5.

Harassment Due To Physical Disability (Govt. Code §12940(A))

6.

Wrongful Constructive Termination in Violation of IWC (Govt. Code §12940)

7.

Willful Misclassification as Exempt (Wage Order No. 4)

8.

Failure To Pay Premium Overtime/Double Time Wages Due (Cal. Labor Code §§ 510, 511, 558, 1194, 1198; Wage Order No. 4)

9.

Failure To Pay Minimum Wages Due (Cal. Labor Code §§ 1194, 1194.2, 1197, 1197.1 1198; IWC Wage Order No. 4)

10.

Failure To Provide Meal Periods (Cal. Labor Code §226.7; IWC Wage Order No. 4)

11.

Failure To Provide Rest Periods (Cal. Labor Code §226.7; IWC Wage Order No. 4)

12.

Waiting Time Penalties (Cal. Labor Code §226; IWC Wage Order No. 4)

13.

Failure To Pay Wages Due At Termination (Cal. Labor Code §203; IWC Wage Order No. 4)

14.

Failure To Provide Day of Rest (Cal. Labor Code §§ 551, 552)

15.

Failure To Allow Inspection of Employment Records (Cal. Labor Code §1198.5)

16.

Unfair Competition (Cal. Bus. & Prof. Code §§17200 Et Seq.)

17.

Fraudulent Misrepresentation

18.

Promissory Fraud

19.

Negligent Misrepresentation

20. Damages Pursuant to Private Attorney

General Act ("Paga")

.Discussion:

I.

ARBITRATION

"A written agreement to submit to arbitration an existing controversy or a controversy thereafter arising is valid, enforceable and irrevocable, save upon such grounds as exist for the revocation of any contract." (Code Civ. Proc., § 1281.) "On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party thereto refuses to arbitrate such controversy, the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for the revocation of the agreement." (Code Civ. Proc., § 1281.2.)

The law creates a general presumption in favor of arbitration. In a motion to compel arbitration, the moving party must prove by a preponderance of evidence

the existence of the arbitration agreement and that the dispute is covered by the agreement. The burden then shifts to the resisting party to prove by a preponderance of evidence a ground for denial (e.g., fraud, unconscionability, etc.). (Rosenthal v. Great Western Fin'l Securities Corp. (1996) 14 Cal.4th 394, 413-414; Hotels Nevada v. L.A. Pacific Ctr., Inc. (2006) 144 Cal.App.4th 754, 758.)

Any challenges to the formation of the arbitration agreement should be considered before any order sending the parties to arbitration. The trier of fact weighs all evidence, including affidavits, declarations, documents, and, if applicable, oral testimony to determine whether the action goes to arbitration. (Hotels Nevada v. L.A. Pacific Ctr., Inc., supra, 144 Cal.App.4th at p. 758.)

The agreement requires arbitration for any claims arising from covered disputes. Federal Arbitration Act (FAA) governs the rules for conducting arbitration. While the FAA governs the rules for conducting arbitration, barring citation to a case precluding California law, motions to compel arbitration are still governed by California Arbitration Act regulations. (See Adolph v. Uber Technologies, Inc. (2023) 14 Cal.5th 1104, 1119; Viking River Cruises, Inc. v. Moriana (2022) 142 S.Ct. 1906; Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University (1989) 489 U.S. 468, 477–479; Victrola 89, LLC v. Jaman Properties 8 LLC (2020) 46 Cal.App.5th 337, 346.) “[T]he existence of a valid agreement to arbitrate is determined by reference to state law principles regarding the formation, revocation and enforceability of contracts generally. (Kinney v. United HealthCare Services, Inc. (1999) 70 Cal.App.4th 1322, 1327–1328; see Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236; Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842.)

Bambee, Inc. moves to compel arbitration of all claims based on the terms and condition of the agreement. Bambee establishes the existence of the executed arbitration agreement dated December 6, 2021. The agreement provides in relevant part to the parties agreement to submit to arbitration, all “ to disputes arising out of or relating to the application for employment, background checks, privacy, employment relationship, or the termination of that relationship (including post-employment defamation or retaliation), trade secrets, unfair competition, compensation, classification, minimum wage, expense reimbursement, overtime, breaks and rest periods, or retaliation,

discrimination, or harassment ..." [Declaration of Erika Shao, Ex. B.] The unchallenged evidence establishes an executed agreement encompassing all claims.

Bambee also denies any unconscionability. The burden of establishing unconscionability falls on the challenging party. The unopposed motion also fails to establish any potential under EFAA or wage and hour exemptions. (Rosenthal v. Great Western Fin'l Securities Corp., supra, 14 Cal.4th at pp. 413-414; Hotels Nevada v. L.A. Pacific Ctr., Inc., supra, 144 Cal.App.4th at p. 758.) The court declines to make the arguments on behalf of Plaintiff on this unopposed motion. (Badie v. Bank of America (1998) 67 Cal.App.4th 779, 784-785 ["When [a party] fails to raise a point or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived"].) Bambee also denies any effort to arbitrate the representative PAGA claims, and only seeks to adjudicate the individual PAGA claim. The unchallenged position is also valid. (Id.)

Bambee, Inc. submitted a reply to an apparently served opposition. The court electronic filing system shows no opposition on file at the time of the tentative ruling publication cutoff deadline. While a timely posted opposition may appear on the court filing system following some form of correction by either Plaintiff's counsel or clerical staff, the court defers consideration until any such actual filing.

The motion is therefore CONTINUED.

Superior Court of California

County of Los Angeles

Department 732

DIANA BRODSKIY DIX,

Plaintiff,

v.

BAMBEE, INC., a Delaware
corporation, et al.,

Defendants.

Case No.:
26STCV02219

Hearing Date: August 17, 2026

[TENTATIVE] RULING RE:

MOTION TO COMPEL ARBITRATION

Defendant Bambee, Inc.'s
Motion to Compel Arbitration is CONTINUED.

Bambee, Inc. to give notice.

Dated: August 17, 2026

Hon.
Richard S. Kemalyan

Judge
of the Superior Court